

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

ADEBISI ADENARIWO, *Claimant*

v.

THRONE SHIPPING INC., *Respondent*.

DOCKET NO. 2033(I)

SERVED: APRIL 3, 2026

ORDER OF: Debra L. Tesh, *Small Claims Officer*.

INITIAL DECISION¹

I. INTRODUCTION AND SUMMARY OF DECISION

Claimant, Adebisi Adenariwo, initiated this proceeding by filing an informal claim and accompanying exhibits with the Federal Maritime Commission (FMC or Commission) alleging Throne Shipping Inc. (Respondent) violated the Shipping Act in connection with an arrangement to transport a generator to Nigeria. Claimant seeks reparations and punitive damages of \$50,000 and an order for Respondent to cease and desist from further violations.

Claimant alleges that he entered into an agreement with Respondent for shipment of a skid-mount generator from California to Nigeria. According to Claimant, he paid the agreed upon amount for international shipping and storage of the generator at Respondent's warehouse but received no further updates regarding status of the shipment. After several months, Respondent allegedly informed Claimant that the generator had been shipped to Nigeria and demanded that he pay an additional \$5,000 in customs charges. Despite repeated attempts to obtain documentation and confirm shipment, Respondent continued to withhold shipping information and the current location of the generator remains unknown.

Respondent disputes these allegations. Respondent denies offering to ship the generator to Nigeria and maintains that it has never been licensed as an ocean transportation intermediary (OTI) with the FMC, therefore, it is not a regulated entity. Instead, Respondent contends that it merely provided domestic storage for Claimant's generator and equipment. According to Respondent, storage fees remained partially unpaid at the time it ceased operations in May of 2025, and the generator was deemed abandoned and disposed of in accordance with California state law. Respondent requested dismissal of the Claim.

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

As discussed more fully below, Claimant has failed to demonstrate a valid claim under 46 U.S.C. § 41102(c), or § 41104(a)(2). Claimant's common law, Uniform Commercial Code (UCC) and Carriage of Goods by Sea (COGSA) claims fall outside of the Commission's jurisdiction and are therefore dismissed.

However, the record does demonstrate that Respondent operated as an OTI without an FMC license in violation of 46 U.S.C. § 40109(a) and 46 C.F.R. §§ 515.3(a) and 515.31(j). Notwithstanding this violation, Claimant has neither alleged, nor demonstrated that he sustained an injury proximately caused by Respondent's unlicensed status. Accordingly, Claimant's request for reparations is denied. Furthermore, evidence is insufficient to establish that Respondent is continuing to operate as an unlicensed OTI, therefore, Claimant's request for a cease and desist order is also denied.

II. BACKGROUND

A. Procedural History

On June 23, 2022, Claimant, Adebisi Adenariwo, initiated this proceeding by filing an informal complaint with 18 pages of evidence (Claim) against Respondent Throne Shipping Inc., with the Office of the Secretary at the Federal Maritime Commission (FMC or Commission). The Claimant initially alleged: 1) violations of 46 U.S.C. § 41102(c) and 46 C.F.R. § 515.31(f); and 2) violations of COGSA, the UCC, and common law breach of contract. Claim, at pgs. 4, 6. Claimant sought damages in the amount of \$6,497.08 for the cost of the generator; \$1,195 for inland freight from Las Vegas to Compton; \$4,000 shipping charges; \$1,000 storage fees; and \$410.38 equipment finance charges for a total of \$13,102.46. Claim, at p. 6.

A Notice of Filing of Small Claims Complaint (NOF) along with a copy of the Claim was served on the parties on June 23, 2025. The NOF informed Respondent that it must file a response with the Secretary by July 18, 2025, together with an indication as to whether Respondent consents to the informal procedure provided in Subpart S of the Commission's Rules of Practice and Procedure (46 C.F.R. §§ 502.301-305). *See* NOF.

Respondent did not file a response within the allowed time. On July 24, 2025, the Commission's Office of Administrative Law Judges sent an email to Respondent noting that a response was due by July 18, 2025, and advised that if no response was received by the extended deadline of August 7, 2025, the failure to respond could result in a default finding in favor of Claimant. *See* July 24 email.

On August 11, 2025, when Respondent again failed to respond to the deadline, the case was assigned to Small Claims Officer Theresa Dike (SCO). On August 18, 2025, SCO Dike served an Order requiring Respondent to show cause (OSC) by September 15, 2025, explaining why a default judgement should not be entered against it. OSC, at pg. 1-2. In the event that Respondent complied with the OSC, SCO Dike further ordered Claimant to provide additional documents and information by September 29, 2025. Specifically, the OSC set forth the elements of 46 C.F.R. § 545.4 that must be established to successfully prove a violation of 46 U.S.C. § 41102(c). Claimant was ordered to explain how Respondent's alleged actions violated these elements and provide supporting evidence. OSC, at pg. 3-4.

Respondent filed a response to the OSC (R. Resp. OSC) on August 21, 2025, stating it was not a regulated entity and requesting dismissal of the Claim. The response did not indicate whether Respondent consented to the informal small claims procedure. In accordance with regulation, Respondent's failure to indicate refusal or consent is deemed to indicate consent. 46 C.F.R. § 502.303(e).

As directed by SCO Dike, on September 12, 2025, Claimant also filed a response to the OSC (C. Resp. OSC), together with 22 pages of evidence marked as Exhibits 1-14. *See* C. Resp. OSC. The portion of Claimant's response addressing the elements in 46 C.F.R. § 545.4 lacks clarity on some points but appears to add an assertion that Respondent violated 46 U.S.C. § 41104(a)(2) by not issuing a bill of lading. This assertion will be incorporated into the Claim with the previously alleged violations. Furthermore, under Section 5. Damages and Remedies, Claimant added a request for punitive damages in the amount of \$37,897.54 to reach the maximum reparations allowed in a small claims action. Claimant also requested an order that Respondent cease and desist from further violations. C. Resp. OSC, at pgs. 2-4.

On September 30, 2025, pursuant to 46 C.F.R. § 502.304(a) and (e), SCO Dike issued a Request for Additional Documents and Information (RFI). The RFI sought additional documents and information from the parties by October 28, 2025, and replies to the other party's response by November 11, 2025. *See* RFI.

On October 28, 2025, Respondent filed its response to the RFI (R. Resp. RFI) along with four pages of supporting documents. *See* R. Resp. RFI. On October 27, 2025, Claimant filed his response by email to the questions posed in the RFI. On October 28, 2025, Claimant sent a second email to correct typographical errors and add additional documentation (hereinafter the emails are collectively referred to as C. Resp. RFI). *See* C. Resp. RFI.

Due to a lapse in government funding, the FMC was closed from October 1, 2025 through November 13, 2025.

On February 5, 2026, the case was reassigned to the undersigned SCO and notice was served on the parties. On February 10, 2026, a Second Order Requesting Additional Information (Sec. RFI) was served. *See* Sec. RFI. The request specifically stated that responses were required to be sworn under penalty of perjury in accordance with 28 U.S.C. § 1746 and specified the language that should appear immediately above the signature of the responding party. Responses were due on February 19, 2026, and each party's reply was due on March 5, 2026. Sec. RFI, at pgs. 3-4.

On February 22, 2026, Respondent filed its response to the second request for information (R. Resp. Sec. RFI) under penalty of perjury. *See* R. Resp. Sec. RFI. The response did not include any additional documents or other evidence.

On February 25, 2026, Claimant emailed the FMC stating he had just returned from Nigeria and needed additional time to respond to the second RFI. *See* February 25 email. The undersigned granted the request and extended the due date for a response to March 2, 2026, and replies to the parties' responses was extended to March 16, 2026. *See* February 25 Judges email.

On March 2, 2026, Claimant emailed a response to the second request for information (C. Resp. Sec. RFI). *See* C. Resp. Sec. RFI. The response was not signed under penalty of perjury and did not include any additional documents or other evidence.

On March 17, 2026, a Third Order Requesting Additional Information (Third RFI) was served on the parties. Among other requests for a response from Respondent, the Third RFI afforded Respondent an opportunity to acknowledge or rebut evidence in the form of a Facebook page for Throne Shipping, Inc. admitted to the record. *See* Third RFI.

On March 17, 2026, Respondent filed a response to the Third RFI. R. Resp. to Third RFI. Claimant did not file a reply by the due date established in the Third RFI.

B. Argument of the Parties

1. Claimant's Arguments

Claimant argues that in June of 2021, he purchased a Caterpillar skid-mounted generator (the generator) at auction in Las Vegas, Nevada. The generator was being stored at a warehouse in Nevada until a friend affiliated with a shipping company in Maryland referred him to Respondent to arrange for shipment of the generator to Nigeria. In communications between the parties regarding logistics on or about June 28, 2022, the parties reached an agreement to have the generator transported to Respondent's warehouse in California via inland transport and Respondent to then load the generator in its shipping container and ship to Nigeria. Respondent provided the warehouse address for delivery at 426 E Banning St Compton, California. C. Resp. OSC, pg. 1-3.

On August 1, 2022, DeCarteret LLC delivered the generator to the Compton California warehouse in accordance with Respondent's instructions. Claim, at ¶ III.A. Over the course of several months, Claimant made payments toward the agreed upon amounts of \$4,000 for international shipping and \$1,000 for storage. C. Resp. OSC, at pg. 4. Claimant asserts his final payment was made on May 9, 2023. Claim, at ¶ III.B.

After several months without communication from the Respondent, on November 13, 2023, Claimant inquired about the status of the shipment. Claim, at ¶ III.D. Respondent informed Claimant that the generator had already been shipped in container MSMU7311211. Claimant questions the veracity of this representation, asserting that tracking information for the container indicates that the vessel had already returned to the United States prior to the purported shipment date that Respondent provided. Claimant further asserts Respondent represented that the 40' container also included three additional vehicles, raising questions as to whether there would be sufficient space in the container for the generator along with the other cargo. *Id.*

Respondent purportedly demanded an additional \$5,000 to cover port clearing fees in Nigeria. C. Resp. OSC, at pg. 4. Due to his inability to meet Respondent's demands for more money, Claimant felt forced to sell the generator. In December 2023, Claimant began asking for the specific port location and documentation of the shipment in order to assert his property rights and recover the generator. Claim, at ¶ III.E. Respondent provided only vague responses and failed to produce any shipping documentation or a bill of lading despite repeated requests. *Id.* Respondent ceased to respond to Claimant's multiple inquiries. Claim, at ¶ III.F. The actual

location of the generator and whether it was ever shipped to Nigeria remains unknown. C. Resp. OSC, at p. 2.

In sum, Claimant alleges Respondent violated 46 U.S.C. § 41102(c) and 46 U.S.C. § 41104(a)(2), as well as 46 C.F.R. § 515.31, and further asserts various other violations under the UCC, COGSA and common law. Claimant seeks \$13,102.46 in reparations representing the cost of the generator, shipping, storage fees and finance charges, in addition to \$37,897.54 in punitive damages. Claimant also requests that the FMC issue a cease and desist order prohibiting Respondent from further violations. Claim, at pgs. 4-6; C. Resp. OSC, at pgs. 1-4.

2. Respondent's Arguments

Respondent, for its part, denies that it agreed to arrange or contract with Claimant for international ocean transport of his generator. Respondent initially claimed that the business functioned solely as a warehousing company providing inland cargo handling and temporary storage for customers. R. Resp. RFI, at Q4, Q5, Q13 Q14. Respondent acknowledges that the generator was delivered to its warehouse but maintains that the arrangement was limited to temporary storage. According to Respondent, Claimant intended to ship the generator along with other auto parts or a car before moving the consolidated cargo to a freight forwarder or ocean carrier of his choosing. R. Resp. RFI, at Q1; R. Resp. Sec. RFI, at Q1.

In the response to the Third RFI, Respondent then shifted its argument to acknowledge that Throne Shipping, Inc. is not a storage facility but functions as a private entity licensed in Nigeria. Respondent determined its Nigerian export/import license did not allow it to do business in the United States; therefore, it did not register as a foreign NVOCC. The business in California has not been operational since 2019. Respondent continues to deny that it entered into a shipping agreement with Claimant and that the only agreement was for storage with a separate entity, Throne Logistic, Inc. *See* R. Resp. to Third RFI.

With respect to the allegation that Respondent provided a container number for the generator shipment, Respondent denies any involvement with container MSMU7311211 and asserts that any reference to this container originated from Claimant or third parties. *See* R. Resp. Sec. RFI, at Q2. Respondent contends that all payments Claimant made to Throne Shipping Inc. were for solely for warehouse storage fees. *See* R. Resp. Sec. RFI, at Q5. Despite repeated communications requesting payment for the storage, Claimant left the generator in Respondent's warehouse well beyond the intended period and did not pay the full balance. R. Resp. RFI, at Q9. The generator was ultimately deemed abandoned and disposed of in accordance with local regulations when the warehouse facility closed in May of 2025. R. Resp. RFI, at Q1, Q2, Q9; R. Resp. Sec. RFI, at Q4; R. Resp. to Third RFI, at V, VI.

Respondent confirms it has never been licensed as an ocean transportation intermediary or marine terminal operator with the FMC. R. Resp. RFI, at Q4; R. Resp. Sec. RFI, at Q1; R. Resp. to Third RFI, at I. As such, Respondent argues it is not a regulated entity and any dispute with the Claimant concerning alleged shipping services or unpaid storage fees falls outside of FMC jurisdiction. R. Resp. OSC, at pg. 2; R. Resp. Sec. RFI, at p. 2; R. Resp. to RFI, at VII.

In general, motion practice is not permitted under Subpart S for informal small claims. *See* 46 C.F.R. §§ 502.301-305. Therefore, Respondent's request to dismiss the proceeding will be deemed to be argument and considered as such for the purposes of this decision.

III. FINDINGS OF FACT ESTABLISHED BY THE RECORD (FF)

1. Claimant, Adebisi Adenariwo, is an individual. *See* Claim, ¶ III.
2. I take official notice that Respondent, Throne Shipping Inc., became a licensed entity with the California Secretary of State on May 31, 2016. The license became inactive on April 2, 2024. The principal address for the business is 1321 W Rosecrans Ave Apt. 26 Gardena, CA 90247. The listed agent is Olalekan Micheal Ilori. *See* <https://bizfileonline.sos.ca.gov/search/business> 3/17/26; *see also* 46 C.F.R. § 502.226.
3. Olalekan Ilori is the representative agent for Respondent. R. Resp. OSC, at pg. 3.
4. I take official notice that the Better Business Bureau of California lists Throne Shipping, Inc. as a non-accredited logistics company also known as Olalekan Ilori Cargo Shipping. *See* <https://www.bbb.org/us/ca/hawthorne/profile/logistics/throne-shipping-inc-1216-1000032614> 3/17/26; *see also* 46 C.F.R. § 502.226.
5. I take official notice that Throne Shipping, Inc. advertises on Facebook as a door-to-door cargo delivery service offering shipping from the United States to Nigeria for parcels, industrial equipment and automobiles. *See* <https://www.facebook.com/Throneshipping/> 3/17/26; *see also* 46 C.F.R. § 502.226.
6. The City of Compton licensed Throne Logistics, Inc., located at 426 E Banning St Compton, CA 90222, as a warehouse. The listed owner is Nkechi Ilori. R. Resp. RFI, at pg. 4.
7. I take official notice that the Throne Logistics, Inc. business license expired on March 7, 2025. *See* <https://www4.citizenserve.com/Portal/PortalController> 3/17/26; *see also* 46 C.F.R. § 502.226.
8. I take official notice that neither Throne Shipping, Inc., nor the alternative registered name of Olalekan Ilori Cargo Shipping are licensed by the Commission. *See* <https://www2.fmc.gov/oti/>; *see also* R. Resp. RFI, at Q4; R. Resp. RFI, at Q1; R. Resp. to Third RFI, at I; *see also* 46 C.F.R. § 502.226.
9. On June 11, 2021, Claimant purchased a Caterpillar SR4 320 KW skid-mount generator and pallet jacks at auction in Las Vegas, Nevada for \$6,497.08. Claim, at p. 26; C. Resp. OSC, Ex. 13.

10. On June 28, 2022, Claimant and Olaleken Ilori,² engaged in the following electronic exchange:
- Respondent at 2:49 p.m.: Are you loading a container for yourself or you want me to ship like that in our container?
 - Claimant at 2:53 p.m.: Load up for me in your own container, would be cheaper for me o jare. Or what do you think here.
 - Respondent at 2:57 p.m.: Ok
 - Respondent at 2:58 p.m.: 426 E Banning Street Compton CA 90222

(grammar and punctuation in original).

Claim, at p. 10; C. Resp. OSC, Ex. 2.

11. On August 1, 2022, DeCarteret LLC delivered the generator to a warehouse in Compton California for \$1,995.00. Claim, at pg. 25; C. Resp. OSC, Ex. 12.

12. On October 22, 2022, Claimant and Respondent engaged in the following electronic exchange:
- Claimant at 1:07 p.m.: It's bothering me too but I'm working on it. But you are still not telling me about the storage fees situation.
 - Respondent at 1:30 p.m.: It's \$20 per day
 - Claimant at 1:46 p.m.: What? I am not quite sure what you're saying here.
 - Respondent at 2:01 p.m.: Sir, this is the reason why I don't want to take this generator in the first place and that's the reason I'm reminding you everyday about the storage, no free storage here in California and even cars pays \$20 a day not to talk of that big generator.
 - Claimant at 2:15 p.m.: I am still in a trance for reading this message from you and the story about "not wanting to take the generator in the first place". Since when did you have this thought?.
 - Respondent at 2:20 p.m.: Please let's move forward sir, is not easy to ship bid equipment like this, we started talking about this generator more than a year ago now.
 - Claimant at unknown time: Please let's try to talk about this. I will (...)

² Respondent's representative, Olaleken Ilori, does not deny that he is the individual corresponding under the name Lekan Throne Cargo in the electronic messages.

(grammar and punctuation in original).

R. Resp. RFI, at pg. 5.

13. On October 22, 2022, Claimant's bank confirmed an electronic payment in the amount of \$2,000 to a checking account for Throne Shipping, Inc. (310) 956-8795. C. Resp. OSC, Ex. 14.2.
14. On May 9, 2023, Claimant made a \$1,500 electronic payment to Lekan Throne Cargo enrolled as Throne Shipping, Inc. A text message to Respondent accompanying the thumbnail image of the payment transaction stated:
 - Claimant at 12:29 p.m.: Here's the payment instrument for the remaining balance of the \$2,000 (out of \$4,000 shipping fees), plus the \$1,000 storage fees. Thanks.

Claim, at pgs. 11-13; C. Resp. OSC, Ex. 3.

15. On May 9, 2023, Claimant's bank confirmed the \$1,500 electronic payment to a checking account for Throne Shipping, Inc. (310) 956-8795. C. Resp. OSC, Ex. 14.3.
16. The parties exchanged text messages pertaining to another \$500 electronic payment the Claimant made to Lekan Throne Cargo enrolled as Throne Shipping, Inc. There is no date stamp on the text message thread, but it occurred on or before June 18, 2023 - the date stamp following the relevant exchange. The text exchange accompanying the thumbnail image of the payment transaction is as follows:
 - Claimant at 6:20 a.m.: Dear Lekan, please receive this and advise me ASAP on how far we are with the shipment. I'm cognizant on the remainder. Thanks and have a great midweek day
 - Respondent at 11:16 a.m.: Good day sir, I was expecting \$1,500 not \$500 Please we need the balance in order to move forward, thanks.
 - Claimant at 12:38 p.m.: Please move forward, there's no need to halt the process so that we don't have the demurrage involve. You know where I stand financially and please let me know where you are on this shipment. @ our last discussed, you informed me that this ship is on the way to 9ja.
 - Respondent at 12:40 p.m.: As you know we can't do anything without money, please we need the balance to move forward

(grammar and punctuation in original).

R. Resp. RFI, at pg. 6.

17. On May 24, 2023, Claimant's bank confirmed an electronic payment in the amount of \$500 to a checking account for Throne Shipping, Inc. (310) 956-8795. C. Resp. OSC, Ex. 14.4.

18. On June 18, 2023, Claimant's bank confirmed an electronic payment in the amount of \$500 to a checking account for Throne Shipping, Inc. (310) 956-8795. C. Resp. OSC, Ex. 14.1.

19. On November 13, 2023, the parties engaged in the following text exchange:

- Claimant at 10:23 a.m.: Hello Mr Lekan how was your weekend, Please give me a call when you're offline, thanks.
- Claimant at 10:44 a.m.: Hello Mr. Lekan I saw you online just now and I attempted to call you. Please call me back when you get this message, thanks
- Respondent at 1:50 p.m.: MSMU7311211
- Respondent at 1:51 p.m.: That's the container number

(grammar and punctuation in original).

Claim, at pgs. 14-15; C. Resp. OSC, Ex. 4.

20. On November 14, 2023 at 3:05 p.m., Respondent sent a text message stating:

2004 infinity G35
2005 highlander
2004 Rx300
40ft

C. Resp. OSC, Ex. 5.

21. On December 6, 2023 at 1:50 p.m., Claimant messaged Respondent:

After all these said-N-done, one thing that is clear is that I didn't actually want neither this to happen nor the selling off the Gen that I wanted to use personally. Shipping the gen without informing me (the consignee, of the timing and the delivery-timing of the clearing) possess to be the major issue here) and not what you're alluding to. Yes it cost me great deal of money to inland-freight from Las Vegas to your place and it over-stayed there for a long time, but when shipped out, I did not have any knowledge and also when it arrived, I did not receive any indications from you except when you asked me for the invoice for it, and lastly when you were demanding this huge amount for clearing it from the port, @ a time when I was about leaving for the States for 9ja. That is why I am so perplexed by what to do about it here now. I have reached the point of the inevitable conclusion whereby I just want to sell it off because I don't see any way out of this mess other than selling it. I'm not in the States where I can walk into a bank to ask for a loan and the last straw, I am in Nigeria where I came with the only money that would sustain me. Please help me out to seek out the best possible solution other than sweating and regretting. Thanks Bro 😊 and enjoy the rest of your midweek day.

(grammar, punctuation and emoji in original).

Claim, at pgs. 16-18; C. Resp. OSC, Ex. 6.

22. On December 10, 2023 at 12:37 p.m., Claimant messaged Respondent:

Mr. Lekan I am wishing you a very happy Sunday. As I am trying hard to find a way of out of this bad situation, you seemingly continue to unleash a load of negativity towards me and my integrity. The fact that you have been in my radar for sometime now is just what's causing me to be so quiet about all the insults that you have raining down on me. You, as a professional shipping company, shipped out my consignment, as per the supplied-record tracking system of the "MSMU7311211" label has revealed, in June (based on this information provided by you) probably in piecemeal quantities so as to avoid the hassle of the custom's fees. At what point did you finalize the shipment, no one knows. The container's contents has long been removed from the container and returned back to the States. I, in retrospect would have been fully engaged with more information about this container and the process that it would entail. But you unilaterally decided not to do this. Whereas I was kept in total darkness. Now I am being held hostage to do a "forced sale" of the Generator and yet you are threatening me that you will sell it. You might likely have never been privy to my expanse knowledge in the business world but I didn't just get into the business of shipping, just as yesterday. No Bill of lading was issued out to me about this consignment (...)

(grammar and punctuation in original).

Claim, at pgs. 20-22; C. Resp. OSC, Ex. 9.

23. Throne Logistics, Inc. issued an invoice to Claimant dated December 8, 2023. The invoice billed for forklift services on August 1, 2022, and 473 days of storage services from August 2, 2022 through December 8, 2023, at \$20 per day for an invoice total of \$10,060. The invoice does not reflect credit for any payments. R. Resp. RFI, at pg. 3.

IV. DISCUSSION

A. Burden of Proof

"In all cases governed by the requirements of the Administrative Procedure Act, 5 U.S.C. 556(d), the burden of proof is on the proponent of the motion or the order." 46 C.F.R. § 502.203. A person alleging a Shipping Act violation, therefore, bears the burden of proof to demonstrate its allegations by a preponderance of the evidence. 46 C.F.R. § 502.203; 5 U.S.C. 556(d); *Maier Terminals, LLC v. Port Auth. of N.Y. & N.J.*, Docket No. 08-03, 2014 WL 9966245, at *14 (FMC Dec. 17, 2014). The term, "burden of proof" is understood to mean "the burden of persuasion." *Director v. Greenwich Collieries*, 512 U.S. 267, 276 (1994). When the party with the burden of persuasion produces sufficient evidence (characterized as a prima facie case), the burden of production shifts to the other party to produce evidence rebutting that case. *In re South Carolina State Ports Auth. for Declaratory Order*, Docket No. 94-24, 27 S.R.R. 1137, 1161 (FMC Aug. 12, 1997); *Steadman v. SEC*, 450 U.S. 91, 101 (1981) ("Where a party having the burden of

proceeding has come forward with a prima facie or substantial case, he will prevail unless his evidence is discredited or rebutted.”). When direct evidence is unavailable, inferences may be drawn from certain facts and circumstantial evidence may be sufficient so long as the fact finder does not rely on mere speculation. *Waterman S.S. Corp v. General Foundries, Inc.*, Docket No. 93-15, 26 S.R.R. 1173, 1180 (FMC Dec. 9, 1993) adopted in relevant part, 1994 WL 279898, 26 S.R.R. 1424 (FMC June 13, 1994). If the evidence produced by both parties is evenly balanced, the party with the burden of persuasion will not prevail. *Greenwich Collieries*, 512 U.S. at 281.

B. Allegations of the Claim

In Claimant’s various submissions, he references multiple alleged violations of the Shipping Act, Commission’s Regulations, COGSA, UCC and common law. Administrative agencies may only adjudicate violations that are within their jurisdiction. Therefore, the Claim must allege a violation of a specific section of the Shipping Act. Claims rooted in common law breach of contract, or general complaints regarding Respondent’s conduct and professionalism fall outside of FMC jurisdiction. The undersigned acknowledges that Claimant is a self-represented party and has not always precisely identified the applicable Shipping Act sections he believes were violated. Therefore, some latitude has been afforded in construing his claims.

C. Alleged Violation of 46 U.S.C. § 41102(c)

Section 41102(c) of the Shipping Act prohibits common carriers, marine terminal operators, and ocean transportation intermediaries from failing to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing or delivering property. 46 U.S.C. § 41102(c).

To establish a successful claim under section 41102(c), the Commission identified five elements that must be demonstrated:

- (a) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- (b) The claimed act or omissions of the regulated entity are occurring in the normal, customary, and continuous basis;
- (c) The practice or regulation relates to or is connected with receiving , handling, storing or delivering property;
- (d) The practice or regulation is unjust or unreasonable; and
- (e) The practice proximately caused the claimed loss.

46 C.F.R. § 545.4.

In the OSC, SCO Dike expressly informed the parties that a violation of § 41102(c) requires a showing that the alleged conduct meets all five elements set forth in 46 C.F.R. § 545.4. The SCO directed the Claimant to explain how each element was met under the facts in this case. OSC, at pgs. 2-3. Claimant’s response, however, largely restated the general requirements of

§ 41102(c) and did not directly address the five elements of § 545.4. Instead, Claimant generally asserted that Respondent demanded additional funds for port clearance, did not issue a bill of lading as required by regulation and these unjust or unreasonable actions were the direct cause of his claimed losses. C. Resp. OSC, at pgs. 1-4. The burden of proof rests with Claimant to establish each element of the alleged violation by a preponderance of the evidence.

To satisfy the first element, Claimant must demonstrate that Respondent was operating as a regulated entity - namely, an ocean common carrier, marine terminal operator, or ocean transportation intermediary. Here, there is no evidence that Respondent is a marine terminal operator or a vessel operating common carrier. An “ocean transportation intermediary” is defined as either an ocean freight forwarder or a non-vessel-operating common carrier. 46 U.S.C. § 40102(20).

An “ocean freight forwarder” means a person that, in the United States, dispatches shipments from the United States via common carrier and books or otherwise arranges space for those shipments on behalf of shippers and processes the documentation or performs related activities incident to those shipments. 46 U.S.C. § 40102(19); *see also* 46 C.F.R. § 515.5(o).

The Commission’s Regulations provides a list of common tasks performed by a freight forwarder:

- (1) Ordering cargo to port;
- (2) Preparing and/or processing export declarations;
- (3) Booking, arranging for or confirming cargo space;
- (4) Preparing or processing delivery orders or dock receipts;
- (5) Preparing and/or processing ocean bills of lading;
- (6) Preparing or processing consular documents or arranging for their certification;
- (7) Arranging for warehouse storage;
- (8) Arranging for cargo insurance;
- (9) Clearing shipments in accordance with United States Government export regulations;
- (10) Preparing and/or sending advance notifications of shipments or other documents to banks, shippers, or consignees, as required;
- (11) Handling freight or other monies advanced by shippers, or remitting or advancing freight or other monies or credit in connection with the dispatching of shipments;
- (12) Coordinating the movement of shipments from origin to vessel; and
- (13) Giving expert advice to exporters concerning letters of credit, other documents, licenses or inspections, or on problems germane to the cargoes' dispatch.

46 C.F.R. § 515.2(h).

A non-vessel-operating common carrier (NVOCC) means a common carrier that does not operate the vessels by which the ocean transportation is provided and is a shipper in its relationship with an ocean common carrier. 46 U.S.C. § 40102(16).

The Commission's Regulations provide a list of common tasks performed by an NVOCC:

- (1) Purchasing transportation services from a common carrier and offering such services for resale to other persons;
- (2) Payment of port-to-port or multimodal transportation charges;
- (3) Entering into affreightment agreements with underlying shippers;
- (4) Issuing bills of lading or other shipping documents;
- (5) Assisting with clearing shipments in accordance with U.S. government regulations;
- (6) Arranging for inland transportation and paying for inland freight charges on through transportation movements;
- (7) Paying lawful compensation to ocean freight forwarders;
- (8) Coordinating the movement of shipments between origin or destination and vessel;
- (9) Leasing containers;
- (10) Entering into arrangements with origin or destination agents;
- (11) Collecting freight monies from shippers and paying common carriers as a shipper on NVOCC's own behalf.

46 C.F.R. § 515.2(k).

In analyzing whether an entity acted as an ocean transportation intermediary, the Commission looks at the totality of circumstances and their combined effect. The Commission also examines the entity's conduct with respect to a particular shipment. *Worldwide Relocations, Inc. – Possible Violations of Sections 8, 10, and 19 of the Shipping Act of 1984*, Docket No. 06-01, 2012 WL 11914713, at *5 (FMC Mar. 15, 2012). Respondent argues that Throne Shipping, Inc. is a private entity and does not provide shipping services to third parties. Moreover, the company ceased operations in the United States in 2019. R. Resp. to Third RFI, at I. However, the Commission has long held that solicitation and advertising are factors relevant to a determination of whether an entity is holding itself out to the public as a provider of transportation services. *Tariff Filing Practices, Etc., of Containerships, Inc.*, 9 F.M.C. 56, at 62 n.7 (FMC 1965).

In the present case, Respondent continues to maintain that it never entered into any agreement with Claimant to ship the generator. R. Resp. OSC, at Q2; R. Resp. RFI, at Q4, Q5; R. Resp. Sec. RFI, at Q1. According to Respondent, the only agreement was for the generator to be stored at Respondent's warehouse while Claimant made his own arrangements for freight forwarding services. R. Resp. RFI, at Q1, Q13.

Respondent attempts to recast the issue as a private matter involving unpaid storage fees for the generator at the warehouse on 426 E Banning St in Compton California. In support of this contention, Respondent provided a City of Compton business license for Throne Logistics, Inc. identifying the business category as a warehouse. FF 6. However, Respondent later acknowledged that Throne Logistics, Inc., is a separately incorporated entity distinct from Respondent. R. Resp. to Third RFI, at III. Although Respondent's agent, Olalekan Ilori, may have an ownership interest in both entities, it is a fundamental principle of corporate law that incorporated entities maintain a legal identity distinct from their owners and affiliated entities. *See Ngobros and Co. Nigeria Ltd. v. Oceane Cargo Link, LLC, and Kingston Anasah*, Docket No. 14-15, 2016 WL 3548083, at *6 (FMC June 21, 2016) ("It is elemental jurisprudence that a corporation is a creature of the law, endowed with a personality separate and distinct from that of its owners.") (citing *Berger v. Columbia Broadcasting System*, 453 F.2d 991, 996 (5th Cir. 1972)). Here, any debt Claimant owes to Throne Logistics, Inc., as a distinct entity, does not bear on whether Throne Shipping, Inc., violated the Shipping Act.

Although the record does not contain shipping documentation that would allow a definitive determination as to whether the Respondent acted as an NVOCC or ocean freight forwarder, Respondent's statements and conduct are most consistent with that of an ocean freight forwarder.

On or about June 28, 2022, Respondent offered to ship the generator in a company container and instructed Claimant to have the generator delivered to the warehouse at 426 E Banning St in Compton. FF 10. Claimant made payments to a Throne Shipping, Inc. bank account noting that these payments were to be credited toward the balance of \$4,000 shipping freight plus \$1,000 for storage. FFs 12-17. On October 22, 2022, Respondent expressed the difficulties it has experienced in the past shipping large equipment such as the generator. FF 11. Finally, shortly before June 18, 2023, the parties had another conversation regarding the outstanding balance Respondent required before it would "move forward" with the generator shipment. Claimant urged Respondent not to halt the process so that there would be no demurrage involved. FF 15. Claimant made the additional payments on May 24, 2023, and June 18, 2023, to satisfy the remaining balance. FFs 16, 17. On November 13, 2023, Respondent informed Claimant that the generator had been shipped in container number MSMU7311211 and the following day provided a list of other cargo in the same 40' container. FFs 18, 19. In addition to these communications regarding shipment of the generator, the record contains evidence that Respondent advertised its services to the public as a freight forwarder through its publicly available Facebook page.

Under the FMC Rules of Practice and Procedure and the Administrative Procedures Act, evidence is admissible if it is relevant, material, reliable and probative, and not unduly repetitious or cumulative. 46 C.F.R. § 502.204; *see also* 5 U.S.C. § 556(d). "In comparison with court trials, administrative adjudications generally are governed by liberal evidentiary rules that

create a strong presumption in favor of admitting questionable or challenged evidence.” *EuroUSA Shipping, Inc., v. Tober Group, Inc., and Container Innovations, Inc. – Possible Violations of Section 10 of the Shipping Act of 1984 and the Commissions Regulations at 46 C.F.R. § 515.27*, Docket No. 06-06, 2008 WL 7149852, at *7 (FMC Dec. 8, 2008) (citing Ernest Gellhorn & Ronald M. Levin, *Administrative Law and Process* 255 (4th ed. 1997)). Here, Respondent’s Facebook page is relevant and probative as to whether Respondent is holding out as an OTI. Respondent was afforded an opportunity to acknowledge or rebut the evidence. As such, the Facebook page is admitted to the record.

Respondent’s publicly available Facebook page advertises the company as a cargo and freight company offering door-to-door shipping from the United States to Nigeria. A promotional video features a globe point pointing to the United States and Nigeria and details the ease in which automobiles and industrial equipment may be booked for shipment on the site with a “100% money back guarantee.” An additional graphic emphasizes “Door-Step delivery is one of the perks that comes with shipping with us.” The contact telephone number listed for booking, (310) 956-8795, matches the number associated with Claimant’s electronic payments to Throne Shipping, Inc. FF 5; C. Resp. OSC, Ex. 14.

Respondent repeatedly asserted, including under penalty of perjury, that it operated solely as a warehouse business until asked to respond to the Facebook page for Throne Shipping, Inc. Respondent now implies that Throne Shipping, Inc. may have operated as a shipping company in the past, but it closed in 2019 when it determined its foreign export/import license did not allow it to operate in the United States. According to Respondent, Throne Shipping, Inc. now only ships its own goods using licensed NVOCCs. R. Resp. to Third RFI, at I. Despite Respondent’s claims, a preponderance of the evidence establishes that Respondent held itself out and acted as an ocean freight forwarder.

Turning to the remaining required elements, the conduct at issue must be unjust or unreasonable and must be the proximate cause of the claimant’s injury. A freight forwarder “may not withhold any information concerning a forwarding transaction from its principal.” 46 C.F.R. § 515.32(c). The Commission has expressly held that withholding a bill of lading necessary to secure the release of cargo, particularly as leverage to collect a debt, constitutes an unjust and unreasonable act in connection with receiving, handling, storing or delivering property under § 41102(c). *See William J. Brewer v. Saeid B. Maralan (aka Sam Bustani) and World Line Shipping, Inc.*, Docket No. 99-19, 2001 WL 122035 at *4 (FMC Jan. 3, 2001) (citing *Total Fitness Equipment v. Worldlink Logistics, Inc.*, 28 S.R.R. 534, 541 (FMC 1998), affirmed sub nom. *Worldlink Logistics, Inc. v. Federal Maritime Comm’n*, 203 F.3d 54 (D.C. Cir. 1999)).

Applying this precedent to the facts of record, the undersigned finds that Respondent’s conduct was unjust and unreasonable. Respondent’s withholding of the port location and bill of lading based on purported customs or storage fees owed to a separate entity is unjust and unreasonable. Alternatively, it is unjust and unreasonable for an OTI to fail to perform an obligation for which it was compensated. If Respondent accepted payment and then falsely represented that the generator had been shipped, when in fact it remained in the Throne Logistics, Inc. warehouse accruing additional fees, such conduct constitutes unjust and unreasonable behavior.

Notwithstanding that the forgoing elements were met, Claimant has failed to produce sufficient evidence to establish that Respondent's acts occurred on a normal, customary, and continuous basis. The record reflects that the Claim only involves a single shipment and Claimant affirmatively stated he was not aware of any other persons or entities that have transacted business with Respondent. C. Resp. OSC, at p. 2.

In the rulemaking process for 46 C.F.R. § 545.4, the Commission clarified that "[s]ection 41102(c) was never intended to be a method of resolving every dispute that arises in the receiving, handling storing or delivering of cargo." *Interpretive Rule, Shipping Act of 1984 (Final Rule)*, 83 Fed. Reg. 64478, 64479 (Dec. 17, 2018). Instead, the Commission articulated that a violation of § 41102(c) historically requires a showing that, "... the unreasonable regulation or practice was the normal, customary, often repeated, systematic, uniform, habitual, and continuous manner in which the regulated common carrier was conducting business." *Id.* (citations omitted). "Commission precedent has made it clear that a single shipment or isolated act or omission does not show a pattern or practice." *See Crocus Investments, LLC v. Marine Tans. Logistics, Inc.*, Docket. No. 15-04, 2021 WL 3732849, at *8 (FMC Aug. 18, 2021) (citing *Hangzhou Qianwang Dress Co., Ltd. v. RDD Freight Int'l Inc.*, Docket No. 17-02, 2020 WL 5406762 (FMC Sept 1, 2020)). In sum, § 41102(c) does not create a remedy for a one-time unjust and unreasonable act. Claimant has failed to produce evidence showing that the alleged conduct occurred on a normal, customary or continuous basis. Absent evidence of repeated or ongoing conduct, the record does not support a violation of § 41102(c).

D. Alleged Violation of 46 U.S.C. § 41104(a)(2)

Claimant asserts that by failing to issue a bill of lading Respondent violated § 41104(a)(2). Section 41104(a) provides that a common carrier, either alone or in conjunction with any other person, directly or indirectly, shall not –

...

(2) provide services in the liner trade that is –

(A) not in accordance with the rates, charges, classifications, rules, and practices contained in a tariff published or a service contract entered into under Chapter 405 of this title, unless excepted or exempted under section 40103 or 40501(a)(2) of this title; or

(B) under a tariff or service contract that has been suspended or prohibited by the Federal Maritime Commission under chapter 407 or 423 of this title.

46 U.S.C. § 41104(a)(2).

First, § 41104(a) only governs common carriers. A common carrier is either a vessel operating common carrier or a non-vessel operating common carrier and does not include ocean freight forwarders, such as Respondent. Second, subsection (2) of § 41102(a) prohibits certain activities involving common carrier tariffs and service contracts, all of which are inapplicable here. The section does not govern the failure to provide or issue a bill of lading, which has been addressed in the preceding section regarding Claimant's alleged violation of 46 U.S.C. § 41102(c). *See supra*. Therefore, Claimant has not established a violation of § 41104(a)(2).

E. Alleged Violation of the Carriage of Goods by Sea Act (COGSA); the Uniform Commercial Code (UCC) and Breach of Contract

In his initial submission, Claimant asserts without elaboration that the matter appears to be a violation of the Carriage of Goods by Sea Act (COGSA) and the Uniform Commercial Code (UCC). In addition, he states that failure to issue a bill of lading is a breach of contract and violation of maritime law. Claim, ¶ IV.

While the FMC maintains jurisdiction over claims arising out of violations of the Shipping Act, common law claims rooted in contract lie exclusively with the courts. *Bimsha Int'l v. Chief Cargo Serv., Inc. and Kaiser Apparel, Inc.*, Docket No. 10-08, 2013 WL 9808692, at *1 (FMC Sept. 4, 2013); *Cargo One, Inc. v. COSCO Container Lines Co., Ltd.*, Docket No. 99-24, 2000 WL 1648961, at *15 (FMC Oct. 31, 2000) (noting that claims alleging breach of contract violations are not properly before the Commission). Similarly, COGSA claims are not within the Commission's jurisdiction. See *A.N. Beringer, Inc. v. Marlin Marine Svcs., Inc.*, Docket No. 1652(I), 1990 WL 427469, at *5 (FMC Nov. 14, 1990) (citing *Pilgrim Furniture Co., Inc. v. American-Hawaiian Steamship Co.*, 2 U.S.M.C. 517, 518 (U.S.M.C. Feb. 13, 1941)).

Claimant's allegations under this section are dismissed for lack of jurisdiction. Claimant may have a cause of action in an alternate forum for damages under these legal bases.

F. Alleged Violation of 46 U.S.C. § 40901(a); 46 C.F.R. §§ 515.3(a) and 515.31(j)

Claimant asserts without elaboration that Respondent violated 46 C.F.R. § 515.31(f). Claim, at pg. 4. The cited section addresses an OTI's obligations with respect to knowledge of errors and omissions made by the principal or shipper in connection with shipping documents and prohibits participation in transactions involving unlawful documentation. This section does not align with the facts or claims in the present case. There is no contention that Claimant, as principal or shipper, made any errors or omissions in documentation that would require Respondent to decline to proceed with shipment of the generator.

However, Claimant's narrative of the allegations states that Respondent "acted" as a professional shipping company and "should have been more careful about their shipping policy in the [sic] accordance of the law and regulations of the FMC and should be treated as such." C. Resp. OSC, pg. 3. In context, this assertion is reasonably construed as alleging violations related to OTI licensing requirements. Accordingly, Claimant's allegations are interpreted to assert a violation of 46 C.F.R. §§ 515.3(a) and 515.31(j), and corresponding statutory provision 46 U.S.C. § 40901(a), rather than 46 C.F.R. § 515.31(f).

Section 40901(a) of the Shipping Act prohibits any person in the United States from advertising, holding oneself out, or acting as an ocean transportation intermediary unless that person holds an ocean transportation intermediary license issued by the Federal Maritime Commission. See also 46 C.F.R. §§ 515.3(a) and 515.31(j).

Respondent repeatedly asserts that Throne Shipping, Inc. is not an OTI "does not operate vessels, issue bills of lading, arrange international ocean carriage or act as a freight forwarder" and "has never been licensed as OTI." R. Resp. OSC, at Q1; R. Resp. RFI, at Q4; R. Resp. Sec. RFI, at Q1. As previously discussed above, however, the record establishes that Respondent held

itself out as an OTI without the requisite license on at least one occasion. Specifically, Respondent advertised itself as an ocean freight forwarder and entered into an agreement to arrange for shipment of the generator from California to Nigeria. FFs 5, 9. The only factually accurate statement Respondent made is that it is not licensed as an OTI with the FMC. *See* FF 7. Respondent's admission that it is not licensed as an OTI serves to underscore rather than negates the violation. Accordingly, Respondent violated 46 U.S.C. § 40901(a) of the Shipping Act and 46 C.F.R. §§ 515.3(a) and 515.31(j) of the Commissioner's Regulations.

However, the fact that a violation occurred does not, by itself, establish entitlement to reparations. The Commission has held that, "(a) damages must be the proximate result of violations of the statute in question; (b) there is no presumption of damage; and (c) the violation in and of itself without proof of pecuniary loss resulting from the unlawful act does not afford a basis for reparation." *James J. Flanagan Shipping Corp. v. Lake Charles Harbor and Terminal Dist.*, 30 S.R.R. 8, 13 (FMC 2003) (quoting *Waterman v. Stockholms Rederiaktiebolag Svea.*, 3 F.M.C. 248, 249 (1950)).

Here, Claimant neither alleges nor demonstrates that any financial loss was proximately caused by Respondent operating without an FMC license. The evidence submitted contains no nexus linking Claimant's asserted damages to the licensing violation. Accordingly, Claimant has failed to establish entitlement to reparations for this violation.

G. Cease and Desist Order

Claimant requests that Respondent be prohibited from continuing to operate as an unlicensed OTI. The Commission has the authority under the Shipping Act to order regulated entities to cease and desist from violating the Shipping Act and implementing regulations. *See Bimsha Int'l v. Chief Cargo Serv. And Kaiser Apparel, Inc.*, Docket No. 10-08, 213 WL 9808692, at *7 (FMC Sept. 4, 2012).

In *Worldwide Relocations*, the Commission discussed when it is appropriate to issue an injunction against continued illegal conduct. The Commission stated:

After a factfinder has determined that a respondent has violated laws, an injunction is appropriate if the court determines there is a reasonable likelihood that he will violate the laws again in the future. The Commission has, in previous cases, enjoined parties from certain behavior, including future violations of the Shipping Act. In evaluating whether a reasonable likelihood of future violations exist, the court considers whether a defendant's violation was isolated or part of a pattern, whether the violation was flagrant and deliberate or merely technical in nature, and whether the defendant's business will present opportunities to violate the law in the future.

Worldwide Relocations, Inc. – Possible Violations of Sections 8, 10, and 19 of the Shipping Act of 1984, Docket No. 06-01, 2012 WL 11914713, at *10 (FMC Mar. 15, 2012) (internal ellipses and citations omitted).

Respondent has been found to have violated 46 U.S.C. § 40901(a) of the Shipping Act and 46 C.F.R. §§ 515.3(a) and 515.31(j) of the Commission's Regulations. A cease

and desist order may be warranted if there is evidence that Respondent is likely to continue or resume operating as an OTI without an FMC license and where relief is necessary to prevent future violations.

In determining whether to issue cease and desist orders, the Commission considers, among other factors, whether the respondent remains engaged in providing transportation and whether there continues to be a reasonable need for such orders. In some cases, cease and desist orders have been issued to protect the shipping public from the possibility of future violations even when a respondent has ceased operations. *See Alex Parsinia d/b/a Pacific Int'l Shipping and Cargo Express*, 27 S.R.R. 1335, 1342 (FMC Dec. 4, 1997) (court issues a cease and desist order even though respondent had ceased doing business because of respondent's history of establishing companies under new names to conceal violations that injured the shipping public).

Here, the record provides conflicting evidence of the Respondent's business status. As of March 17, 2026, Respondent's publicly available Facebook page continued to advertise: "Shipping from Anywhere in the USA To Any Location in Nigeria." The page features a video showing the ease in which cargo can be booked and shipped through the company. Contact information for booking lists 3300 W Rosecrans Ave, #204 Hawthorne CA 90250 USA; +310 956 8795; www.throneshipping.com. FF 5. Although the listed telephone number for booking remains functional, as evidenced by Claimant using it to communicate with the Respondent, the Facebook page has not been updated since 2019, and the referenced website domain is no longer valid. Moreover, Respondent's business license became inactive in April of 2024. FF 2. These facts support Respondent's claim that the business closed in 2019 and is no longer actively providing the advertised shipping services to the public.

On balance, the record establishes only a single violation and does not demonstrate that Respondent will engage in future shipping transactions without obtaining a required license. As such, there is no reasonable basis for issuance of a cease and desist order.

To the extent that there are ongoing concerns regarding Respondent's licensing compliance, the Office of Investigations within the FMC's Bureau of Enforcement, Investigations, and Compliance (BEIC) is responsible for performing full investigations into potential violations of OTI licensing. Allegations may be reported to the office for further review by contacting the BEIC at BEIC@fmc.gov.

V. CONCLUSION

Claimant's common law and COGSA claims are dismissed for lack of jurisdiction. Claimant fails to demonstrate that Respondent violated §§ 41102(c) and 41104(a)(2) of the Shipping Act of 1984 and these claims are also dismissed. The evidence does corroborate the Claimant's allegation that Respondent operated as an ocean transportation intermediary without an FMC OTI license as required. 46 U.S.C § 40109(a); 46 C.F.R. §§ 515.3(a) and 515.31(j). However, the Claimant's request for reparations is denied because Claimant failed to demonstrate that he sustained injury as a proximate cause of Respondent's lack of a license.

Claimant's request for a cease and desist order enjoining Respondent from continuing to operate as an OTI in the future is also denied as there is insufficient evidence to show that Respondent's business is currently operational or that it may resume operation in the future.

VI. ORDER

Upon consideration of the evidence of record, arguments of the parties and foregoing findings of fact and conclusion that Respondent did not violate 46 U.S.C. § 41102(c) and 46 U.S.C. § 41104(a)(2) of the Shipping Act, that Respondent did violate 46 U.S.C. § 40901(a) of the Shipping Act and 46 C.F.R §§ 515.3(a) and 515.31(j) of the Commission's Regulations but Claimant did not sustain actual loss as a result of the violation, it is hereby

ORDERED that the claim against Respondent Throne Shipping Inc. be **DISMISSED**. It is

FURTHER ORDERED that Claimant Adebisi Adenariwo's claim for reparations is **DENIED**. It is

FURTHER ORDERED that Claimant's request for a cease and desist order is **DENIED**.

Debra L. Tesh -S

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Debra L. Tesh -S

Date: 2026.04.03

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Debra L. Tesh
Small Claims Officer